# MASTER VENDOR & CLOUD SERVICES AGREEMENT

TEST CONTRACT 2 — AI Contract Risk & Compliance Evaluation

## 1. Parties

This Master Vendor & Cloud Services Agreement (“Agreement”) is entered into between Vertex Health Systems Ltd., Mumbai, India (“Client”), and Orion Data Platforms LLC, Austin, Texas, USA (“Vendor”). The Agreement is effective 15 November 2026.

## 2. Services

Vendor will provide cloud hosting, data analytics, application monitoring, technical support, and API access. Vendor may use third-party infrastructure providers and may change the hosting region from time to time based on operational requirements.

## 3. Fees and Price Changes

Fees are payable within 45 days of invoice. Vendor may increase recurring subscription fees by up to 12% upon 30 days' notice. If Client does not reject the increase within 10 days, the revised fees will be deemed accepted. Taxes, governmental charges, and third-party infrastructure costs may be charged separately.

## 4. Service Levels

Vendor targets 99.5% monthly availability. Service credits are Client's sole remedy for failure to meet availability targets. Planned maintenance and outages caused by third-party infrastructure providers are excluded from availability calculations.

## 5. Customer Data

Client owns Customer Data submitted to the Services. Vendor may process Customer Data to provide the Services and may create aggregated or de-identified datasets from such data. Vendor may use those datasets for product development, analytics, benchmarking, and commercial purposes. Vendor is not required to obtain Client approval before using aggregated datasets.

## 6. Artificial Intelligence

Vendor may use automated systems and machine-learning models to analyze Customer Data and generate recommendations. Vendor does not guarantee that AI-generated outputs will be accurate, complete, unbiased, or suitable for any particular decision. Client is solely responsible for reviewing AI-generated recommendations before relying on them.

## 7. Privacy and Subprocessors

Vendor will maintain a list of subprocessors. Vendor may add or replace subprocessors without individual notice to Client. Client may object only where it can demonstrate that a proposed subprocessor creates a material compliance risk. Vendor may transfer data internationally where reasonably necessary to provide the Services.

## 8. Security Incident

Vendor will notify Client of a confirmed security incident without undue delay and, where commercially reasonable, within 96 hours after confirmation. Initial notices may be limited to information reasonably available at the time. Vendor may provide additional details as its investigation progresses.

## 9. Security Controls

Vendor will maintain commercially reasonable security controls appropriate to the nature of the Services. Vendor does not warrant that its systems will prevent every unauthorized access, malware event, vulnerability, or data loss incident.

## 10. Confidential Information

Confidential Information may be disclosed to employees, affiliates, contractors, professional advisers, and service providers who have a need to know. Vendor may retain copies of confidential information in backups that cannot reasonably be deleted, subject to continuing confidentiality obligations.

## 11. Intellectual Property

Each party retains ownership of its pre-existing intellectual property. Vendor owns all improvements, configurations, templates, connectors, documentation, and generic technical developments created while providing the Services. Client receives a non-exclusive license to use deliverables solely during the Term.

## 12. Warranties and Disclaimer

Vendor warrants that it will perform the Services in a professional manner consistent with generally accepted industry practices. Except for this warranty, the Services and all AI-generated outputs are provided without warranties of accuracy, uninterrupted availability, merchantability, fitness for a particular purpose, or non-infringement.

## 13. Indemnity

Client will indemnify Vendor against third-party claims arising from Client Data, Client's instructions, regulatory violations attributable to Client, or Client's use of the Services outside the documented purpose. Vendor will defend Client against a third-party claim alleging that the core Services infringe a patent, copyright, or registered trademark, subject to the exclusions in this Agreement.

## 14. Liability

Neither party will be liable for indirect, special, incidental, punitive, or consequential damages. Vendor's aggregate liability is capped at the subscription fees paid by Client during the six months before the event giving rise to the claim. The liability cap does not apply to Client's payment obligations, but applies to all other claims to the maximum extent permitted by law.

## 15. Data Retention

Vendor may retain Customer Data for 90 days after termination to support recovery, billing, security, and legal obligations. After that period Vendor will use commercially reasonable efforts to delete production copies. Backup copies may remain until overwritten under Vendor's standard backup cycle.

## 16. Audit and Compliance

Client may request an annual compliance package, including available SOC 2, ISO 27001, or similar reports. Any additional audit must be performed remotely, during normal business hours, with at least 20 business days' notice. Client bears its own audit costs.

## 17. Business Continuity

Vendor maintains disaster-recovery procedures but does not guarantee a specific recovery time objective or recovery point objective unless expressly stated in an Order Form. Client is responsible for maintaining independent backups of critical business records.

## 18. Term and Renewal

The initial Term is two years. The Agreement automatically renews for additional one-year periods unless either party gives at least 60 days' written notice before the end of the current Term.

## 19. Termination for Convenience

Client may terminate for convenience after the first 12 months by giving 60 days' written notice and paying all undisputed amounts accrued through the termination date. Vendor may terminate for convenience upon 90 days' notice.

## 20. Governing Law and Disputes

This Agreement is governed by the laws of Singapore. Any dispute not resolved through good-faith negotiations within 30 days will be finally resolved by arbitration in Singapore under applicable arbitration rules. Proceedings will be confidential.

## 21. Assignment

Client may not assign this Agreement without Vendor's prior written consent, except to an affiliate or in connection with a merger where the assignee assumes all obligations. Vendor may assign the Agreement to an affiliate or successor without Client consent.

## 22. Entire Agreement

This Agreement, applicable Order Forms, and incorporated schedules constitute the entire agreement between the parties. In the event of conflict, an Order Form controls only if it expressly identifies the provision of this Agreement that it overrides.

**CLIENT**
Authorized Signatory: _____
Name: _____ Date: _____

**VENDOR**
Authorized Signatory: _____
Name: _____ Date: _____